[Public Land Order 1647]

[69356]

MONTANA

PARTLY REVOKING EXECUTIVE ORDER NO. 3504 OF JUNE 25, 1921, AS AMENDED, WHICH ESTABLISHED THE PABLO NATIONAL WILDLIFE REFUGE: DEPARTMENTAL ORDERS OF JULY 8, 1909, FEBRUARY 23, 1910, AND NOVEMBER 17, 1913, WHICH RESERVED LANDS FOR FLATHEAD PROJECT, AND DEPARTMENTAL ORDER OF OCTOBER 3, 1911, WHICH RESERVED LANDS ON FLATHEAD PROJECT TO PROVIDE ALLOTMENTS; RESTORING RELEASED LANDS, AND LANDS IN ALLARD TOWNSITE, TO TRIBAL OWNERSHIP

By virtue of the authority vested in the President and pursuant to Executive Order No. 10355 of May 26, 1952, and by virtue of the authority vested in the Secretary of the Interior by section 3 of the act of June 18, 1934 (48 Stat. 984); by section 22 of the act of March 3, 1909 (35 Stat. 796), and by section 17 of the act of June 21, 1906 (34 Stat. 354), it is ordered as follows:

1. Executive Order No. 3504 of June 25, 1921, as amended by Proclamation No. 2416 of July 25, 1940, so far as it reserved certain lands in sections 16, 17, 20, and 21, T. 22 N., R. 20 W., Montana Principal Meridian, comprising the North Pablo Reservoir, as a part of the Pablo National Wildlife Refuge is hereby revoked. The released lands are the same as those described in paragraph 2 (d) of this order.

2. (a) The Departmental Order of July 8, 1909, reserving certain lands on the Flathead Indian Reservation for reservoir sites under the provisions of the act of March 3, 1909 (35 Stat. L. 795), and

(b) The Departmental Order of February 23, 1910, reserving lands within the Flathead Indian Reservation for power and reservoir sites in connection with the Flathead Project, and

(c) The Departmental Order of October 3, 1911, restoring certain lands from the withdrawal of July 8, 1909, supra, and reserving them to provide allotments in lieu of those in conflict with power and reservoir sites, and

(d) The Departmental Order of November 17, 1913, reserving certain lands in connection with the construction of the Pablo Reservoir on the Flathead Project are hereby revoked so far as they affect the following-described lands:

MONTANA PRINCIPAL MERIDIAN

T. 22 N., R. 20 W.,
Sec. 16, Lots 2, 4, and 5, and NW¼SE¼;
Sec. 17, Lot 15;
Sec. 20, Lots 1 and 3;
Sec. 21, Lots 2, 3, 5, and 7, and N½NW¼.

The areas described aggregate 326.01 acres.

3. Whereas, pursuant to authority contained in the act of June 21, 1906 (34 Stat. 354), certain townsites were, by Departmental Order of February 28, 1910, established within the Flathead Indian Reservation, and

Whereas, the lands in the Allard Townsite, established by said order of February 28, 1910, and described as the W½NW¼ and NE¼NW¼, sec. 22, T. 23 N., R. 19 W., MPM, have never been platted and have attracted no public interest, and

Whereas, the Tribal Council and the Commissioner of Indian Affairs have recommended restoration of the lands in the Allard Townsite, and the lands described in paragraph 2 of this order, to tribal ownership,

Now, therefore, by virtue of the authority vested in the Secretary of the Interior by sections 3 and 7 of the act of June 18, 1934 (48 Stat. 984), I hereby find that restoration to tribal ownership of the lands in the Allard Townsite, and those lands described in paragraph 2 of this order will be in the public interest, and the said lands, excepting the tracts in section 16 and lot 3 of section 21 which have been patented, are hereby restored to tribal ownership for the use and benefit of the Confederated Salish and Kootenai Tribes of the Flathead Indian Reservation, Montana, and are added to and made a part of the existing reservation, subject to any valid existing rights and the easement provided for by section 5 (b) of the act of May 25, 1948 (62 Stat. 269).

ROGER ERNST,
Assistant Secretary of the Interior.

MAY 28, 1958.

[F. R. Doc. 58-4144; Filed, June 3, 1958; 8:45 a. m.]

[Public Land Order 1648]

[359426]

MONTANA

POWER SITE RESTORATION NO. 508; PARTIALLY REVOKING EXECUTIVE ORDER OF SEPTEMBER 10, 1913, CREATING POWER SITE RESERVE NO. 397, AND DEPARTMENTAL ORDER OF JUNE 29, 1908, CREATING INDIAN POWER SITE RESERVE NO. 0

By virtue of the authority vested in the President, and pursuant to Executive Order No. 10355 of May 26, 1952, it is ordered as follows:

The Executive order of September 10, 1913, creating Power Site Reserve No. 397, and the Departmental order of June 29, 1908, creating Indian Power Site Reserve No. 0, Montana, are hereby revoked so far as they affect the following-described lands:

PRINCIPAL MERIDIAN

T. 20 N., R. 21 W.,
Sec. 28, SW¼NE¼.
T. 22 N., R. 21 W.,
Sec. 11, SE¼SW¼;
Sec. 22, NE¼NE¼.
T. 18 N., R. 22 W.,
Sec. 22, SW¼NW¼ and NW¼SW¼;
Sec. 27, NW¼ and E½SW¼;
Sec. 28, SW¼SE¼;
Sec. 33, Lots 1 to 6, inclusive, N½NE¼, SE¼NE¼ and SE¼NW¼;
Sec. 34, NW¼NW¼.

The areas described aggregate 782.25 acres.

The lands are either within the Flathead Indian Reservation, Montana, or are ceded Indian lands, withdrawn pending legislation.

ROGER ERNST,
Assistant Secretary of the Interior.

MAY 28, 1958.

[F. R. Doc. 58-4145; Filed, June 3, 1958; 8:45 a. m.]

TITLE 49—TRANSPORTATION

Chapter I—Interstate Commerce Commission

Subchapter A—General Rules and Regulations

PART 156—REGULATIONS GOVERNING THE REPORTING OF PROPERTY CHANGES; PIPELINE CARRIERS

At a session of the Interstate Commerce Commission, Division 2, held at its office in Washington, D. C., on the 23d day of May A. D. 1958.

Having under consideration requirements of Supplement No. 8 to Valuation Order No. 3, second revised issue, which consists of instructions to govern the recording and reporting of changes in property subsequent to the date of valuation of carriers by pipeline, as prescribed by an order entered November 7, 1936, pursuant to provisions of sections 12 and 19a of the Interstate Commerce Act, as amended (24 Stat. 383, as amended; 37 Stat. 701, as amended; 49 U. S. C. 12 and 19a, as amended); and,

It appearing that tentative regulations governing the reporting of property changes by pipeline carriers, to be prescribed in lieu of said Supplement No. 8 to Valuation Order No. 3, were issued as proposed rule making pursuant to provisions of section 4 (a) of the Administrative Procedure Act by a notice dated March 14, 1958, and published in the FEDERAL REGISTER on March 27, 1958 (23 F. R. 2040); and consideration having been given to responses by interested persons to that notice, which were received on or before April 21, 1958, as therein provided, in the formulation of regulations hereinafter prescribed:

It is ordered, That the said order of November 7, 1936, and the instructions in Part 156 which were prescribed by it be, and both order and instructions hereby are, canceled effective July 1, 1958, as of which date the title of Part 156 of Title 49 in the Code of Federal Regulations shall be changed to conform to the heading of this order and the regulations hereinafter prescribed substituted for the text thereof: *Provided, however*, That all pipeline carriers which are subject to provisions of that order and have not pursuant thereto and prior to the date of such cancellation reported physical property which was installed, retired, or otherwise changed prior to January 1, 1957, as therein required, be, and each of them hereby is, required to report such property changes in the same form and manner as would have been required prior to such cancellation.

It is further ordered, That effective July 1, 1958, all common carriers by pipeline subject to provisions of the Interstate Commerce Act shall comply with "Regulations Governing the Reporting of Property Changes; Pipeline Carriers," which regulations are attached hereto and are by this reference made a part of this order and which may be cited as Revised Supplement No. 8 to Valuation Order No. 3, second revised issue, in reporting physical property which was installed, retired, or otherwise changed on and after January 1, 1957.

And it is further ordered, That this order shall be served on each pipeline